
Journal

2011 MLD 1773

Court

LAHORE HIGH COURT

Date

2011-03-29

Appeal No.

WRIT PETITION NO. 2952 OF 2011

Judge

SARDAR TARIQ MASOOD

Parties

ABDUL QADIR KHAN MAMDOT (PETITIONER) VERSUS REGIONAL POLICE OFFICER, MULTAN AND 5 OTHERS (RESPONDENTS)

Lawyers

WAQAR HASSAN MIR FOR PETITIONER. MIAN IJAZ HUSSAIN FOR RESPONDENT NO.4,.

Statutes

PENAL CODE (XLV OF 1860) - SS. 420, 468 AND 471 CONSTITUTION OF PAKISTAN - ARTICLE 199

Judgment

SARDAR TARIQ MASOOD, J.-Through this petition under Article 199 of Constitution of Islamic Republic of Pakistan, 1973 the petitioner Abdul Qadir Khan Mamdot has prayed that proceedings in case F.I.R. No.522 of 2011 dated 13-7-2010 under sections 420, 468, 471, P.P.C. registered at Police Station Jam Pur District Rajanpur be stayed till the final decision of the Civil Suit. It was further prayed that police officers i.e. respondents Nos.1 to 3 be restrained from causing arrest of the petitioner in the said case, , # 2. The brief facts of the case are that Begum Afifa Mamdot respondent No.4 is the real mother of the petitioner. She is owner of land measuring 85 Kanals and 19 Marlas in Basti Gurdan, Mauza Jampur. She alleged in the above mentioned F.I.R. that petitioner along with others prepared a forged and fabricated agreement to sell oil behalf of her (respondent No.4) in favour of one Muhammad Yahya Khan, respondent No.5. It is also alleged in the F.I.R. that said Muhammad Yahya Khan, respondent No.5 filed a suit for specific performance which is pending in the Court of Civil Judge Jampur. It is also alleged in the F.I.R. that said agreement to sell was allegedly prepared on 19-4-2010 i when the complainant was admitted in the hospital and she never purchased any stamp papers nor signed or thumb marked any agreement to sell. On the application of respondent No.4, above mentioned F.I.R.

4 ' was registered against petitioner and others.

3. Learned counsel for the petitioner contends that die petitioner's co-accused Muhammad Yahya Khan, respondent No.5 purchased land from Mst. Afifa Mamdot for a consideration of Rs.1,07,43,750 out of which, she had received Rs.60-lacs in presence of the petitioner and others. Further contends that subsequently respondent No.5 had approached respondent No.4 and tried'to pay the remaining amount for transfer of the said land through registered sale deed in his favour but respondent No.4 refused to receive the remaining amount and also to execute the sale deed in favour of respondent No.5. Also contends that respondent No.4 filed two applications before learned Civil Judge for comparison of her signatures etc., but said applications, when resisted by respondent No.5 were dismissed; that co-accused Muhammad Yahya Khan, respondent No.5 was arrested and'was allowed post arrest bail and now report under section 173 Cr. P.C. has Been submitted against him; that respondent No.5 had also filed Writ Petition No. 12537 of 2010 for quashment of F.I.R. but the same was dismissed on 2-12-2010; that both civil and criminal proceedings cannot run side by side; that Article 10 of the Constitution of Islamic Republic of Pakistan, 1973 provides certain safeguards to the arrest and detention of tlie petitioner; that Article 10-A of the Constitution gives a right of fair trial to the petitioner; that in view of the. pending civil litigation, provisions of section 195, Cr.P.C. read, with section 476, Cr.P.C. have been left useless and redundant and registration of F.I.R. against the petitioner is illegal. Learned counsel for * the petitioner has relied upon the cases of Muhammad* Akbar v. The State and others (PLD 1968 SC 281), Abdul Ahad v. Amjad Ali and others (PLD 2006 SC 771),.Shera£ Ahmad and others v. Fayyaz-ud-Din and others (2005 SCMR 1599), Riaz-ul-Haq v. Muhammad Aashiq Jorah and others (2000 SCMR 991), A. Habib Ahmad v. M.K.G. Scott Christian and others (PLD 1992 SC 353), Abdul Haleem v.

The State and others (1982 SCMR 988), Muhammad Tufail v. The State and another (1979 SCMR 437) and Akhlaq Hussain Kiyani v. Zafar Iqbal Kiyani and others (2010 SCMR 1835).

4. On the other hand, learned counsel for respondent No.4 contends that petitioner is the real and only son of complainant (respondent No.4). He became a witness of the alleged forged agreement to sell; that on the date when said agreement to sell was prepared, respondent No.4 was lying in the hospital due to her ailment; that the petitioner never surrendered before the Investigating Officer nor obtained J i his bail before arrest from any competent Court of Law and remained untraceable despite efforts to arrest him by the Investigating Agency and there is no

law, on the point that due to pendency of any civil suit the investigation be stayed; that proceedings in criminal Court is pending j ___r only .against Muhammad Yahya Khan, respondent No.5 and others and petitioner is not appearing in the trial Court. He is even not a plaintiff or defendant nor a witness in the civil suit; that' civil and criminal r fr- * proceedings can be initiated side by side and there is no ,bar for continuation of criminal proceedings and the civil suit simultaneously; that agreement to sell was prepared prior to the filing of civil suit, hence, section 195(l)(c), Cr.P.C. is not applicable in this case, h

k 5. Heard. Record perused. .

* » 6. According to die record, land-in-question was earlier leased out to certain person's and said lease expired on 10-4-2010 and on 15-4-2010, respondent No.4 leased out the said land to Fida Hussain etc., and » received an amount of Rs. 1,80,000 through a cheque. Fida Hussain applied for possession of said land whereupon Tehsildar and Qahoongo delivered possession of said land to Fida Hussain on 14-5-2010 and this fact is mentioned in the Revenue Record.

On the other hand, respondent No.5 Muhammad Yahya Khan had filed a civit.suit in which he claimed that respondent No.4 had delivered the possession of said land to him on 19-4r2010. If possession of said land had been delivered to Muhammad Yahya Khan, respondent No.5 on 19-4-2010, then there was no question of delivering its possession to Fida Hussain etc. by the Tehsildar and Qanoongo on 14-5-2010. It is also a circumstance that on 8-6-2010 respondent No.4 gifted land to her two daughters regarding which mutations were sanctioned on 11-6-2010. It is worth mentioning here that on the same day, respondent No.5 filed a suit and claimed that on 19-4-2010 an agreement to sell was executed in his favour and possession was delivered to him. It is also worth mentioning here that in the said agreement to sell, on one side a note was given that possession i was given to respondent No.5 but under said note signature of none is available. Petitioner is the real son of complainant and he had not asserted any mala fide on the part of her mother for his false implication in this case. He is the person who identified the lady who had allegedly executed the agreement to sell but, on the other hand, his mother claimed that on the said date she was lying in the hospital due to her ailment. So, at this stage, investigation of the case cannot be stifled and it would amount to interference into the investigation, especially when petitioner has not been arrested by the police nor he surrendered before any Court. .

7. It is also a circumstance that said agreement to sell was prepared much prior to the filing of civil suit. In that eventuality, section 195(l)(c) Cr.P.C. will not be applicable. Section 190, Cr.P.C. lays down general rule that any person can set the criminal law into motion and section 195, Cr.P.C. is one of the exceptions to that rule. The latter says that in the category of cases mentioned in its clause only the public authority concerned and in category of cases mentioned in clauses (b) and (c) only the Court concerned has right to file a complaint. Though every offence mentioned in section 195 must necessarily affect a private person, yet he stands deprived of his general vested right to have recourse to the criminal law. These offences have been selected for the Court's control because of their direct impact on the judicial process. If a person prepares a forged document and when his fraud and forgery comes to light and real owner or the person defrauded were going to launch criminal proceedings, he hits upon the clever device' of instituting a civil suit and producing the forged documents in the said civil suit.

He would, then, on the view contended for by the petitioner, be able to say that he had produced the documents ip the Civil Court and the aggrieved person should have to wait till that Court had finally decided the genuineness or otherwise of the documents and till that time Court will not be in a position to say whether an offence of forgery was committed or not and to lodge a complaint under section 195, Cr.P.C. Unfortunately, civil suits usually take very long to finalize and, in practical terms, it may amount to completely defeating the ends of justice. In such like cases,

Civil Court will be a place for the * protection of the criminals. The cause of action for proceedings against a forger arose immediately when the offence of forgery as defined in section 463, P.P.C. was committed. The commission of the offence was not intended, to deprive the real owner of his property but had also enabled the forger to deceive others and to deprive them of property and money. Admittedly in this case, forged agreement to sell was prepared on 19-4-2010 and regarding the said document no proceeding were pending in any Court and for the first time the civil suit was filed by the co-accused of the petitioner on 11-6-2010. So, section 195(l) (c), Cr.P.C. therefore, did not apply to cases in which forgery was committed before institution of the suit or over proceedings in which forged documents are produced or given in evidence, subsequently.

The petitioner is not a party in the proceedings before the trial Court where criminal proceedings are pending against his co-accused etc., and he himself is not appearing in the said Court. Even he is not a * party in the civil suit as defendant. So, presently in both the proceedings i.e. criminal and civil pending in the Court, the petitioner is an alien. Hence, his request for staying of the proceedings in the criminal case is not justified. On the other hand, he had not joined the investigation nor he had surrendered before the I.O. or applied for his bail before arrest to any Competent Court. The police is making efforts to arrest him and he remained untraced despite search by the police. He even did not appear in this Court during the proceedings. According to police record, petitioner remained un-traceable despite search. Although, he is not appearing in the criminal proceedings pending before the Magistrate, but a prayer was made on his behalf that proceedings in criminal Court be stayed till the decision of the Civil suit in Civil Court..

F i It is not a universal rule that proceedings in a criminal case should be stayed till the decision of the civil suit. Civil suit and criminal proceedings can proceed side by side on their own merits. * Merely, because the civil proceedings relating to the same transaction have been instituted cannot be considered a legal bar in continuation of criminal proceedings which can proceed concurrently because conviction for a criminal offence is altogether a different matter from civil liabilities. While spirit and purpose of the criminal proceedings is to punish offender for commission of crime, whereas, the purpose behind the civil proceedings is to enforce rights arising out of the agreements and contracts. In law both the proceedings can co-exist and can proceed simultaneously, without any legal restriction. There is no bar to initiate both the proceedings, i.e. civil and criminal simultaneously. The proceedings of criminal and, civil cases can be initiated side by side and] p» the Court cannot stifle one proceeding for the other especially, in the cases in which the accused prepared documents (allegedly forged) and then filed a civil suit in the Civil Court and then claimed that the matter is pending in the Civil Court, hence, he cannot be prosecuted in Criminal Court. If this practice is allowed to continue then Qabza Group/land mafia (as in our country) after preparing forged agreement to sell may occupy some one's land, file a civil suit in the Civil Court and then without any fear from a criminal Court can enjoy benefits of said illegal possession for years till the final adjudication of the said civil proceeding upto Supreme Court. They can enjoy the benefit of said land even after the death of the original owner, as unfortunately in our country, Civil Courts take very long time to decide a civil suit.

8. The Hon'ble Supreme Court in the cases of Seema Fareed and others v. The State (2008 SCMR 839) and Rafique Bibi v.

Muhammad Sharif and others (2006 SCMR 512) observed that both civil and criminal proceedings can co-exist and proceed simultaneously without any legal restriction. Reliance can also be made to the cases i.e. Ahmad Saeed v. State (1996 SCMR 186), Talib Hussain v. Anar Gul Khan (1993 SCMR 2177) and DIG of Police v. Anees-ur-Rehman Khan (PLD 1985 SC 134).

9. Learned counsel had argued that verdict of Civil Court upon the genuineness or otherwise of the said agreement to sell would have effect upon the criminal proceedings as the said judgment of the Civil Court would be admissible in a criminal proceeding to establish the truth of the said agreement to sell. It is the settled principle of law that judgment of the Civil Court is not admissible in criminal proceedings to establish the truth of the facts upon which it is rendered. The Hon'ble Supreme Court in the case of Malik Khuda Bakhsh v. The State (1995 SCMR 1621) had observed that judgment of a Civil Court is not admissible in criminal proceedings to establish the truth of the facts upon which it is rendered. So, the contention of learned counsel for the petitioner that proceedings in criminal trial be stayed till the final decision of the civil suit has no force at all.

The judgments relied upon by learned counsel for the petitioner had different facts and circumstances. In Akhlaq Hussain Kiyani's case (supra) (2010 SCMR 1835) the complainant himself had filed a civil suit and also prayed in the said suit regarding determination of his share and then on the same facts he also got registered a criminal case. Likewise, in Riaz-ul-Haq's case (supra) (2000 SCMR 991), the proceedings before the criminal Court were not stayed. Even otherwise the facts of the said case are also different from the facts of present case.

In Sarfraz Ahmad's case (supra) (2005 SCMR 1599), proceedings were stayed with the consent of both the parties. Abdul Ahad's case (supra) (PLD 2006 Lahore 771) has no relevancy with present proposition; that was the case regarding the auction of immoveable property. In Muhammad Akbar's case (PLD 1968 SC 281), Hon'ble Supreme Court of Pakistan observed that no invariable rule that the proceedings initiated by the Police report should be stayed as it is a matter of discretion. The facts of this case are also totally different from the present one. In Abdul Haleem's case (supra) (1982 SCMR 988), complainant himself filed criminal proceedings and also filed civil suit against adverse party and thereafter adverse party also filed two different civil suits. In A. Habib Ahmad's case (supra) (PLD 1992 SC 353), the matter relates in respect of: Offences in Banks (Special Courts). , 10. It is worth mentioning here that in all the above mentioned case law, referred by learned counsel for the petitioner, proceedings were pending in the Courts but in the present case, no proceedings qua the petitioner is pending in any Court rather he had not surrendered before the police nor before any Court. He is not a party in the Civil suit. Coaccused of the petitioner is facing both proceedings in criminal and Civil Court.

* 11. Abdul Qadir Khan Mamdot petitioner is the son of Begum Afifa Mamdot (respondent No.4) and it is not believable that she will falsely involve the petitioner in this case. On one hand, he had not bothered to join the investigation and on the other hand, it was prayed that police be restrained to arrest the petitioner. The petitioner is a nominated accused in this case. He did not surrender before the police nor obtained bail from any Court. F.I.R. was lodged on 13-7-2010. His co-accused have been arrested by the police and are facing the trial but he remained out of law. Now, he has directly approached this Court that the police be restrained to arrest him.

I am afraid that this Court cannot interfere into the process of investigation, especially, when there is direct evidence against the petitioner. Learned counsel for the petitioner could not produce any law that this Court can interfere into the investigation or can restrain the Investigating Officer for arresting the petitioner. It is the settled principle of law that the Court cannot deflect the normal procedure as provided by law. The Courts always avoid to short circuit the normal procedure as provided by law. Even while invoking the constitutional jurisdiction, the Court cannot stifle the investigation or other proceedings during the investigation.

* The petitioner has directly approached this Court for staying of proceedings before the Criminal Court. It is worth mentioning here that his co-accused Yahya Khan has filed a civil suit against

the mother of the petitioner and said Yahya Khan/respondent No.5 is facing trial and he is appearing before the Criminal Court. He did not move any said application for stay of the proceedings in the criminal Court. The petitioner has not approached even the trial Court for stay of the proceedings and has directly moved this Court for invoking the constitutional jurisdiction, although, he and his co-accused were having a remedy before the trial Court for seeking this relief. When a person has an alternate remedy for approaching the court of first instance, then he can not invoke the constitutional jurisdiction under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973.

Consequently, the present petition which is merit less, does not warrant any interference by this Court, is hereby dismissed.

H.B.T./A-171/L Petition dismissed.

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